

STANDING ORDER NO. L&O/70/2024

GUIDELINES FOR ARREST

1. INTRODUCTION:

Arrest means a seizure or restraint; an exercise of the power to deprive a person of his or her liberty, the taking or keeping of a person in custody by legal authority, especially, in response to a criminal charge. The arrestee is taken into custody for questioning, to prevent him from influencing/threatening witnesses or destruction of evidence, to prevent his escape or for evading the due process of law etc. Probable cause of an arrest is a reasonable belief of the police officer in the guilt of the suspect, based on the facts and information prior to the arrest. For instance, an arrest may be legitimate in situations where the police officer has a reasonable belief that the suspect has either committed a crime or is about to commit a crime. Police and various other officers have powers of arrest although certain conditions must be met before taking such action. As a safeguard against the abuse of power, it requires that an arrest must be justified thoroughly for a reason and not to be arbitrary.

The procedures and precautions to be observed while effecting arrest are listed out in Chapter V of the Bharatiya Nagrik Suraksha Sanhita, 2023. In addition, in a number of cases the Hon'ble Supreme Court have laid down additional guidelines to be followed by police officers while making arrests.

2. OFFENCES IN WHICH ARREST CAN BE MADE

The offences in which arrest can be made can be summarized as follows:-

- i)** In all cognizable offences committed in presence of a police officer, arrest can be made without warrant.
- ii) Cognizable offences with punishment less than 7 years-**
 - a. The police officer may arrest without warrant only if any of the conditions in Section 35 (1)(b) of BNSS are fulfilled. **The police officer must record the reasons of arrest in writing.**

- b. In all other cases, **after recording the reasons for not making the arrest**, only a notice can be issued to the person to appear before the police officer
 - i. If he complies and continues to comply, he shall not be arrested. However, if the police officer is of the opinion that he ought to be arrested, he shall record the reasons in writing.
 - ii. If he fails to comply with the terms of the notice, the police officer shall seek orders from the competent Court to arrest him.
- c. **Cognizable offences with punishment less than 3 years and the accused is infirm or is above 60 years of age** – Arrest can be made after obtaining permission from an officer not below the rank of ACP.

iii) Cognizable offences with punishment of more than 7 years

- a. Arrest can be made without warrant and the reason for arrest should be recorded in writing.
- b. If arrest not required, the reasons shall be recorded in writing

iv) Non-Cognizable Offences-

- a. Arrest can be made only under a warrant or order of a Magistrate.

Exception- if the accused refuses to give his name and residence or gives a false name or residence to the police officer, he can be arrested in order to ascertain his name and residence.

3. ARRESTS IN NON-COGNIZABLE OFFENCES

No arrest shall be made in non-cognizable offence without prior written permission from the Court or in circumstances provided by section 39 of BNSS i.e when the person committing non-cognizable offence refuses to give his name and residence or gives a name or residence which such officer has reason to believe to be false.

4. ARRESTS IN COGNIZABLE OFFENCES

- 1. Any police officer may without an order from a Magistrate and without a warrant, arrest any person who commits, in the presence of a police officer, a cognizable offence.

2. **Cognizable Offence with punishment less than 7 years:**

As per section 35 of BNSS, in cognizable offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years with or without fine –

- (I) Any police officer may without an order from Magistrate and without a warrant, arrest any person who committed a cognizable offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years with or without fine, if the following conditions are satisfied, namely:-
 - (i) the police officer has reason to believe on the basis of such complaint, information or suspicion that such person has committed that offence;
 - (ii) The police officer is satisfied that such arrest is necessary:-
 - (a) to prevent such person from committing any further offence;
or
 - (b) for proper investigation of the offence; or
 - (c) to prevent such person from causing the evidence of the offence disappear or tampering with such evidence in any manner; or
 - (d) to prevent such person from making any inducement, threat on promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to the police officer; or
 - (e) as unless such person is arrested, his presence in the Court whenever required cannot be ensured,
- and the police officer **shall record while making such arrest, his reasons in writing.**

Provided that a police officer shall, **in all cases where the arrest of person is not required under the provisions of sub-section 35 (b) (ii) BNSS, record the reasons in writing for not making the arrest.**

- (II) The Honorable Supreme Court in *Arnesh Kumar vs State of Bihar and Anr.*, has further directed that the police officer shall enter the details in check list specifying the reasons and materials which necessitated the arrest. He shall also enclose a copy of check list duly filled in while producing the accused before the Magistrate for further detention. The check list is enclosed herewith as **Annexure "A"**.

- (III) In case a decision is made not to arrest an accused, the same shall be forwarded to the Magistrate within two weeks from the date of the institution of the case with a copy to the Magistrate. This period may be extended by the Addl.CP/DCP of the District concerned for the reasons to be recorded in writing;
- (IV) Notice of appearance in terms of section 35(3) to 35 (6) BNSS be served on the accused within two weeks from the date of institution of case which may be extended by the Addl. CP/DCP of the District concerned for the reasons to be recorded in writing.
- (V) Further Section 35(3) BNSS reads as under:-
- (A) 35(3) BNSS.: Notice of appearance before a police officer:
- (1) The police officer shall, in all cases. where the arrest of a person is not required under the provisions of sub-section (1) of Section 35, issue the notice **(As per Annexure-E)** directing the person against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence, to appear before him or at such other place as may be specified in the notice.
- (2) Where such a notice is issued to any person, it shall be the duty of the person to comply with the terms of the notice.
- (3) Where such person complies and continues to comply with the notice, he shall not be arrested in respect of the offence referred to in the notice unless, for reasons to be recorded, the police officer is of the opinion that he ought to be arrested.
- (4) Where such person, at any time, fails to comply with the terms of the notice or is unwilling to identify himself, the police officer may, subject to such orders as may have been passed by a competent Court in this behalf, arrest him for the offence mentioned in the notice." Arrest in the aforesaid provision has to be followed in context of Section 35 BNSS.
- (VI) No arrest shall be made without prior permission of the officer not below the rank of Deputy Superintendent of Police/Assistant Commissioner of Police in case of an offence which is punishable for less than three years and
- a. such person is infirm or
- b. is above sixty years of age.

On failure to comply with the above directions laid down by the Hon'ble Supreme Court, the police Officers concerned shall be liable for departmental action and shall also be liable for

punishment for contempt of court to be instituted before High Court having territorial jurisdiction.

3. **Cognizable Offence with punishment more than 7 years:**

Any police officer may without an order from a Magistrate and without a warrant, arrest any person against whom credible information has been received that he has committed a cognizable offence punishable with **imprisonment for a term which may extend to more than seven years.**

5. **ARRESTS IN OTHER SCENARIOS**

Any police officer may without an order from a Magistrate and without a warrant, arrest any person

- a. in **whose possession anything is found suspected to be stolen property** and who may reasonably be suspected of having committed an offence.
- b. **who obstructs a police officer** while in the execution of his duty, or who has escaped, or attempts to escape, from lawful custody.
- c. who has been declared as **Proclaimed Offender** either by court or by order of State Government.
- d. who is reasonably suspected of being a **Deserter** from any of the Armed Forces of the Union.
- e. who has been concerned in, or against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists, of his having been concerned in, any act committed at any place out of India which, if committed in India, would have been punishable as an offence, and for which he is, under any law relating to extradition, or otherwise, liable to be apprehended or detained in custody in India.
- f. who, being a released convict, commits a breach of any rule made under sub-section (5) of section 394.
- g. for whose arrest any requisition, whether written or oral, has been received from another police officer, provided that the requisition specifies the person to be arrested and the offence or other cause for which the arrest is to be made, and it appears therefrom that the person might lawfully be arrested without a warrant by the officer who issued the requisition.

6. PRECAUTIONS WHILE MAKING ARREST

PRECAUTIONS

- 1) The police officer making arrest shall bear an accurate, visible clear identification of his name which will facilitate easy identification. If the officer is not in uniform, he should show his identity card to the arrestee.
- 2) In making an arrest, the police officer or other person making the same, shall actually touch or confine the body of the person to be arrested, unless there be a submission to the custody by word or action. Only minimum physical force or restraint shall be exercised for such arrest.
- 3) In case of **arrest of women** :
 - a. The arresting officer shall not touch the women unless arresting officer is a female.
 - b. If the arresting officer is male, he shall be accompanied by woman police officer.
 - c. Force shall not be used unless required.
 - d. When it is necessary to search the female accused it shall be made by another female with strict regard to decency.
 - e. Except in exceptional circumstances, women shall not be arrested after sunset and before sunrise. In case of such exceptional circumstances, the woman police officer shall, by making a written report, obtain the prior permission of the Magistrate of the first class within whose jurisdiction the offence is committed, or the arrest is to be made.
 - f. All arrests of women whether without or with warrant (bailable or non-bailable) shall be carried out by a police officer not below the rank of Assistant Sub-Inspector, who shall be accompanied by a lady constable/head constable. Similar procedure shall be adopted when women in police custody have to be escorted/ interrogated for purposes of investigation. If lady police is not available, the arrest shall be effected in the presence of responsible persons of the locality (preferably women), male relatives of the person to be arrested or village/Town officials. A report regarding the result of interrogation, if done, shall also be sent to the ACP concerned on the same day through SHO.
 - g. When the arrest of a woman is made under compelling circumstances by an officer lower in rank than an Assistant Sub-Inspector, reasons shall be clearly explained. SHO concerned shall forward special reports (**Annexure-D**) as required under PPR 24.12 to DCP, a copy of which shall be sent to the Joint/Addl. Commissioner of Police concerned.

- h. Where bail is admissible, women shall not be detained longer than is necessary for the production of bonds or sureties.
 - i. In cases where imprisonment is less than or extends up to seven years, the procedure laid down in section 35(3) of BNSS as well as the guidelines issued by Hon'ble supreme court of India in Arnesh Kumar Vs State of Bihar case shall be followed before effecting arrest of a women.
- 4) If any person forcibly resists the arrest or tries to evade the arrest, arresting officer may use all means necessary to effect the arrest.
 - 5) **Use of Handcuffs:** The police officer may, keeping in view of nature and gravity of the offence, use handcuff while making the arrest of a person or while producing such person before the court who is :
 - a. A Habitual Offender or
 - b. Who escaped from custody or
 - c. Who has committed offence of Organized Crime (Section 111 BNSS), terrorist act, drug related crime or
 - d. In illegal possession of Arms and Ammunition, murder, rape, acid attack, counterfeiting of coins and currency notes, human trafficking, sexual offence against children or
 - e. Offence against the state.
 - 6) In case the accused tries to abscond, the arresting officer has to use power with such force which is necessary to arrest him. This force may extend to causing the death, only under two circumstances i.e the person is involved in an offence punishable with death or imprisonment for life.
 - 7) The Officer making arrest shall make Arrest Memo (**Annexure-B**). The officer making arrest shall obtain signature on Arrest Memo of family member of person arrested or respectable person of the locality where arrest is made or a person nominated by arrestee who is to be informed of his arrest. Further the officer making arrest shall obtain signatures of the arrested person on Arrest Memo.
 - 8) In case of bailable offence, accused shall be informed about his right to be released on bail on furnishing sureties to the satisfaction of Arresting officer.
 - 9) Arresting Officer shall inform the arrestee about his right to meet his advocate of his choice after arrest and during interrogation (though not throughout interrogation).
 - 10) Arresting Officer shall inform arrested person about full particulars of the offence for which he is arrested.

- 11) The police officer shall mention the mode by which information was given about the place and details of arrest to his relatives, friends or persons nominated by arrestee and to the designated Police officer in the district in Arrest Memo **(Annexure-B)**, Arrested Persons Register and General Diary of the police station.

The police officer making arrest shall make an entry in the Arrested Persons Register **(Annexure-G)** of the fact as to who has been informed of the arrest of such person. (Note: Arrested persons register has been approved by Circular No.42/C&T (AC-1)/2003 dated 16/07/2003 **(Annexure-J)**).

- 12) The requirement of search & seizure during investigation preferably/mandatorily through videography are mentioned in 105, 173(1)(ii), 176(3), and 180 & 185 BNSS. Therefore all police personnel shall video graph the personal search of the person arrested preferably through e-Sakshya app on their phones. Other legal requirements related to search and seizure must be followed during the personal search also.

- 13) Information of Arrest by Arresting Officer to Designated Police Officer and display of the information -

- a. As notified by Department of Home Police-1/Establishment, Government of NCT of Delhi vide Notification Number F.11/08/2024/HP-II/Part file-1/1674 to 1689 dated 02.07.2024, Police Control Room at District and Delhi Police HQ are the places where the arrested persons details shall be displayed as per mandatory provision of Sec. 37(a) and Sec. 37(b). The **Officer In-charge of the Police Control Room located at the District Headquarters** is designated as the officer responsible for maintenance and display of information under Sub-section (b) of Section 37 of BNSS and the **Officer In-charge of the Police Control Room located at every Police Station** is designated as the officer responsible for maintenance and display of information under Sub-section (b) of Section 37 of BNSS 2023.
- b. Arresting Officer shall send information to the Designated Officer mentioned in Sub section (a) at District HQ and PHQ about the names, addresses of the persons arrested **within 12 hours (as per directions of Honorable Supreme Court in D.K Basu vs State of Bengal)** as per format mentioned in **Annexure-G**.
- c. The Designated Police Officer at police station/unit shall collect the data as per format and display Name of Arrested Person, Address of the arrested person and case for which the person has been arrested on Notice Board preferably placed in Duty Officer room clearly visible to visitors.

- d. The Designated Police Officer at Police Station shall keep data of arrested persons for last 24 hours and it should be updated at 0800 Hrs and 2000 Hrs daily. The Designated Officer shall make DD entry at 0800 Hrs and 2000 Hrs about the names updated by General Diary Entry.
 - e. The Designated Police Officer at Police Station shall send report every 12 Hrs to Designated Police Officer at District Head Quarter Control Room and who in turn will send the report to Designated Police Officer, Police Headquarters Control Room who will update the register at 0800 Hrs and 2000 Hrs and display it on Notice Board placed at the place visible to visitors clearly mentioning
 - i. Name of Arrested Person
 - ii. Address of Arrested Person
 - iii. FIR No. and Sections
 - f. The Designated Police Officers at Police Station, District HQ and Police HQ will also display this data in the format as per **Annexure-H** in TV/Display place at the DO room.
- 14) The Arresting Officer shall make a General Diary entry about the arrest and to whom the arrest is informed.
 - 15) Police Officer has power to search the person arrested and seize articles from the arrestee. In such case, the police officer shall give receipt showing the articles taken from his possession.
 - 16) Soon after the arrest is made, police officer shall subject the arrestee to medical examination by Registered Medical Practitioner in the service of State or Central Government. If Arrestee is female, her examination of body shall be made only by female medical officer. If no female medical officer is available, by female Registered Medical Practitioner.
 - 17) The Police Officer has power to get other medical examination of accused if police officer believes that such examination would be required for the purpose of investigation or collection of evidence.
 - 18) The Police officer soon after arrest of person charged with rape or attempt to rape and believes that medical examination of such arrested person is required for investigation of case shall subject such arrested person to be examined by registered medical practitioner employed in a hospital run by the Government or by a local authority and in the absence of such practitioner within the radius of 16 Kms from the place where the offence has been committed by a Registered Medical Practitioner. Police officer to use such force as is necessary for such medical examination.

- 19) Police shall have the duty to take reasonable care of health and safety of the arrested person.
- 20) The Police officer shall produce the arrested person before the Magistrate having Jurisdiction without unnecessary delay. The arrested person shall not be detained in custody beyond 24 hours excluding the time of journey from the place of arrest to the Magistrate's Court whether having jurisdiction or not.

7. Judgements/ Observations of Courts on arrest in Matrimonial Matters

The Delhi High Court in its order dated 28.01.2004 in CrI. M (M) 3875/2003 'Court On Its Own Motion Vs CBI' made the following observations/directions regarding arrests under Section 84/314(2) BNS (**earlier 498A/406 IPC**):-

"Sections 84/314(2) BNS (**earlier 498A/406 IPC**):-are much abused provisions and exploited by the police and the victims to the level of absurdity and are of such nature which can be investigated without arrest and do not fall under the category of being of highest magnitude and prescribing severest punishment or minimum punishment, every relative of the husband, close or distant, old or minor is arrested by the police. By arresting such relatives whose arrest may not be necessary for completing the investigation, as it can be completed by recording the statement of victim, her parents and other witnesses, police assume the role of breaker of homes and not the maker as once any relative of the husband is sent to jail, the marriage ends for all practical purposes and divorce and other miseries are bound to follow. Unless the allegations are of very serious nature and highest magnitude and should always be avoided."

In a judgement in Criminal Appeal Nos. 696/2004, 748/ 2004, 787/2004 and 749/2004, pronounced on 1.11.2007, the Hon'ble High Court of Delhi observed the following:-

"In all these cases in the name of investigation, except recording statement of complainant and her few relatives nothing is done by police. The police does not verify any circumstantial evidence nor collect any other evidence about the claims made by the complainant. No evidence about giving of dowry or resources of the complainant's family claiming spending of huge amounts is collected by the police. This all is resulting into gross misuse of the provisions of law."

In a judgement in Bail Application No. 135/2017, pronounced on 16.02.2017, the Hon'ble High Court of Delhi observed the following: -

"This Court is of the considered opinion that in matters of matrimonial cases, the Investigating Officer is required to first make out whether any article is to be recovered. In case, he is of the view that any article is to be recovered then he is to decide whether the custodial interrogation of any of the accused is required for the purpose of recovery of article. Without reaching to the conclusion with regard to recovery of article, whether it is Stridhan article or any other article, the Investigating Officer is not to arrest the person for the recovery of the same."

On 12.07.2011, Hon'ble Mr. Justice Kailash Gambhir, High Court of Delhi in Bail Application No.1627/2008 "Chander Bhan & Anr. Vs State" passed, inter-alia, the following guidelines to be strictly followed by the police authorities:-

- (A) (i) No case under Sections 84/314(2) BNS (**earlier 498A/406 IPC**):-should be registered without the prior approval of DCP/ Addl. DCP.
- (ii) Arrest of main accused should be made only after thorough investigation has been conducted and with the prior approval of the ACP/DCP.
- (iii) Arrest of the collateral accused such as father-in-law, mother-in-law, brother-in-law or sister-in-law etc. should only be made after prior approval of DCP on file.

8. ARREST OF SENIOR CITIZENS IN FAMILY MATTERS

In pursuance of the directions of Hon'ble High Court of Delhi dated 10.09.2018 in WP(Cr1) No. 503/2018 titled Shashi Kumar Mahajan vs Commissioner of Police, Delhi a committee of senior police officers was constituted for laying down guidelines for arrest of senior citizens in family matters. After due deliberations, the Committee has framed the following guidelines to be followed regarding arrest of senior citizens in family matters:

1. There are various provisions under law and different Court judgements of the Apex Court which safeguard the interest of the arrestee including senior citizens, namely: Joginder Kumar Vs State of Uttar Pradesh (25th April, 1994); D. K. Basu Vs State of West Bengal (18th December, 1996) and Arnesh Kumar Vs State of Bihar &Ors (2nd July, 2014).
2. No arrest shall be made without written permission from officer not below the rank of ACP (**Format for seeking permission and grant of permission by ACP are annexed as Annexure F1 and F2 respectively**) is annexed as annexure- in case of offence is less than 3 years and the person is infirm, or the person is above 60 years.

3. As per maintenance and welfare of Parents and Senior Citizens Act, 2007, a "Senior Citizen" is any person, being a citizen of India, who has attained the age of sixty years or above.
4. The issue of arrest has come into focus since it is observed that in some matrimonial disputes, there are occasions when in addition to the allegation of demand of dowry or harassment, allegations of violence, molestation, rape and unnatural sex etc. are made against the extended family members and relatives, some of whom are senior citizens. The IO must tread cautiously and take due care in all such cases. The available evidence should be weighed properly before taking any coercive action against any such person, especially the senior citizen(s).
5. If at all arrest is required, the IO shall satisfy himself of the desirability of the arrest, looking into aspects such as the person's age, health condition, his/her chances of escaping or evading the process of law etc. If there is sufficient evidence against the senior citizen and the IO is of the opinion that arrest is required, prior approval of the concerned DCP shall be taken before making arrest. The guiding principle is that the arrest of a senior citizen should not be done in a mechanical or routine manner.
6. All the provisions of law, besides the guidelines of the Hon'ble Supreme Court and Delhi High Court, regarding arrest, must be followed meticulously and in true letter and spirit.

9. GUIDELINES LAID DOWN REGARDING ARREST, DETENTION AND INTERROGATION BY HONORABLE SUPREME COURT OF INDIA IN D.K BASU CASE

On 18.12.1996, the Hon'ble Supreme Court of India in WP(Crl.) No. 592/1987 D.K. Basu Vs. State of West Bengal issued in all cases of arrest or detention. Copies of all the documents including the memo of arrest, referred to above, should be sent to the Illaqa Magistrate for his record.

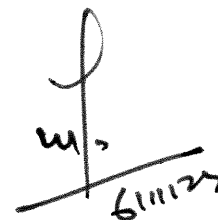
The Hon'ble Supreme Court of India also directed that failure to comply with the above mentioned requirements shall apart from rendering the concerned officials liable for departmental action, also render him liable to be punished for contempt of Court and the proceedings for contempt of Court may be instituted in any High Court of the country, having territorial jurisdiction over the matter. These instructions are to be notified at every police station at a conspicuous place.

10. SUPERSESION CLAUSE

This Standing Order supersedes the previous Standing Order No. L&O/70/2022 issued vide No. 30551-30700/Record Branch/PHQ dated 27.05.2022.

11. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.



(SANJAY ARORA)
COMMISSIONER OF POLICE:
DELHI

No. 13001-13/50 /Record Branch/PHQ dated Delhi, the 6/11/24.

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ (IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Inspr./Knowledge Center/PHQ.

ANNEXTURE-‘A’**CHECK LIST**

(As per direction of Hon'ble Supreme Court in the matter of Arnesh Kumar Vs. State of Bihar)

Name of Parentage of the accused		
FIR No. & Section of Law in which arrested		
Whether Arrest is necessary as per the guidelines		
Reason for Arrest:-		
1.	Whether arrest is necessary to prevent the accused from committing any further offence	Yes/No
2.	Whether the accused is a previous convict of previously involved in a criminal case give details , if any (attach separate sheet).	Yes/No
3.	Whether the accused has previously jumped bail parole, furlough , sentence etc.	Yes/No
4.	Whether there is a chance of jumping bail or avoiding judicial proceeding by the accused.	Yes/No
5.	Whether the accused is having permanent residence in Delhi.	Yes/No
6.	Whether the address of the accused is required to be verified.	Yes/No
7.	Whether there is further requirement of accused in discovery of facts.	Yes/No
8.	Whether assistance of the accused is required for effecting the recovery of case property.	Yes/No
9.	Whether the accused is required for necessitating the arrest of co-accused.	Yes/No
10.	Whether the accused is required for custodial case and to reach to the right conclusion of the case/investigation	Yes/No
11.	Whether there are chances of the accused causing the evidence of the offence to disappear or tampering with such evidence in any manner.	Yes/No
12.	Whether the arrest is necessary for proper investigation of the case.	Yes/No

13.	Whether the arrest of accused is necessary to stop him from making any inducement/threat/promise to the witness (es) of the case or any person connected with the case to dissuade him from disclosing the facts of the case in the court or to the Police Officer, which may affect investigation.	Yes/No
14.	Whether presence of the accused cannot be ensured at the time of requirement	Yes/No
15.	Whether the accused is in a position of influence over the witness (es).	Yes/No
16.	Whether police custody of the accused is required for the purpose of investigation.	Yes/No
17.	Whether the accused is required for taking voice sample, blood sample, semen sample, sputum hair sample, nail clipping, DNA profiling, specimen, signature/writing etc.	Yes/No
18.	Whether the accused is required for TIP, joint interrogation or confrontation with other accused/person(s) etc.	Yes/No

Note- If necessary, separate sheet be attached to clarify the point of the check list.

ANNEXURE-B**Case F.I.R. No.** _____ **Dated** _____ **U/s** _____**प्र.सू.रि.सं. / दे.दै.सं.दिनांक धारान्तर्गत****P.S/थाना** _____ **P.S/थाना** _____ **Delhi/ दिल्ली****ARREST MEMO****गिरफ्तारी पत्र**

As per direction of Hon'ble Supreme Court of India (माननीय उच्चतम न्यायालय भारत के निर्देशानुसार)

1. Name with Alias and Parentage of the Arrestee. गिरफ्तार व्यक्ति का नाम, उपनाम एवं पिता का नाम	
2. Present Address of the Arrestee गिरफ्तार व्यक्ति का वर्तमान पता	
3. Permanent Address of the Arrestee गिरफ्तार व्यक्ति का स्थायी पता	
4. FIR No/DD No & Sec. Of Law. प्र.सू.रि.सं / दे.दै.सं. तथा विधि धारान्तर्गत	
5. Place of Arrest गिरफ्तारी का स्थान	
6. Date & Time of Arrest गिरफ्तारी का समय व तारीख	
7. Name, Address & Tel. No Whomsoever to convey the Arrest information. गिरफ्तारी के संदर्भ में जिसे सूचित किया उसका नाम, पता एवं फोन नं०	
8. Name, Rank & No. of the officer who making arrest. गिरफ्तार करने वाले अधिकारी का नाम, रैंक एवं नं०	
9. Reasons of Arrest गिरफ्तारी का कारण	
a. Prevent Accused person committing any further offence. from आरोपी व्यक्ति को आगे कोई अपराध करने से रोकना।	

b. For proper investigation of the offence अपराध की उचित जांच के लिए	
c. To Prevent the Accused person from causing the evidence of the offence to disappear or tampering with such evidence in any manner. आरोपी व्यक्ति को अपराध के साक्ष्य मिटाने या किसी भी तरीके से ऐसे साक्ष्य के साथ छेड़छाड़ करने से रोकना।	
d. To Prevent such person from making any inducement threat or promise to any person acquainted the facts of the case so as to dissuade him from disclosing such facts to the court or to the police officer. ऐसे व्यक्ति को मामले के तथ्यों से परिचित किसी व्यक्ति को कोई प्रलोभन, धमकी या वादा करने से रोकना ताकि वह ऐसे तथ्यों को अदालत या पुलिस अधिकारी के समक्ष प्रकट करने से विमुख हो सके।	
e. As unless such person is arrested, his presence in the court whenever required cannot be ensured. जब तक ऐसे व्यक्ति को गिरफ्तार नहीं किया जाता, तब तक आवश्यकता पड़ने पर न्यायालय में उसकी उपस्थिति सुनिश्चित नहीं की जा सकती।	Address of the Accused yet to be verified. आरोपी का पता अभी सत्यापित होना बाकी है।

Signature of Arrestee / गिरफ्तार व्यक्ति के हस्ताक्षर

Witness/गवाह

1. _____

2. _____

3. _____

Signature of the IO/ जाँच अधिकारी के हस्ताक्षर

P.S/थाना Delhi/दिल्ली _____

Dated/तिथि _____

ANNEXURE-‘C’

Case No. _____ FIR No. _____ date _____ u/s _____ No./DD _____
PS _____, District: _____

Inspection Memo

1.	Name with alias and parentage of the arrestee	
2.	Present address of the arrestee	
3.	Permanent Address of the arrestee with mobile number	
4.	FIR No./DD NO. & Section of law	
5.	Place of arrest	
6.	Date and time of arrest	
7.	Particulars of body search a. Wearing apparels/ Valuables/Weapons/ Other items b. Injuries, if any	
8.	Any request for Medical Examination by Arrestee or Name of the Police Officer who took initiative to conduct Medical Examination	

Name & Thumb/Signature of arrestee

Signature of IO

PS _____

Dated _____

Copy Received

Date and Time of copy
received by the Arrestee

ANNEXURE-‘D’**FORM No. 24.12(1)**

POLICE STATION _____ DISTRICT _____

VERNACULAR SPECIAL REPORT ON AN OFFENCE

No. _____ of 20 _____ Dated _____ 20 _____

1	2	3	4	5	6
	NUMBER OF PERSONS		VALUE OF PROPERTY		
Offence and section of law offended against; distance and direction of place from police station and name of Sub inspector in charge	Supposed to have been concerned	Arrested	Taken	Recovered	Statement of the case conduct of the police and steps taken by them
					Date and Time of Occurrence. Date and Time of report to police

Signature of Officer-in-charge of Police Station

NOTICE FOR APPEARANCE BY THE POLICE

[See section 35(3)]

Serial No..... Police Station.....

To,

.....

[Name of the Accused/Noticee]

.....

[Last known Address]

.....

[Phone No./Email ID(if any)]

In pursuance of sub-section (3) of section 35 of the Bharatiya Nagarik Suraksha Sanhita, 2023, I

hereby inform you that during the investigation of FIR/Case No dated.....u/s..... registered at Police Station....., it is revealed that there are reasonable grounds to question you to ascertain facts and circumstances from you, in relation to the present investigation. Hence you are directed to appear before me at..... AM/PM on.....at Police Station.

Although you are not being placed under arrest at this stage in respect of the aforesaid FIR, you are directed to comply with all of the following conditions/directions:

- (a) You will not commit any offence in the future;
- (b) You will not tamper with the evidence(s) in the case in any manner whatsoever;
- (c) You will not make any threat, inducement, or promise to any person acquainted with the facts of the case so as to dissuade him/her from disclosing, such facts to the Court or to the Police Officer;
- (d) You will appear before Court as and when required/directed;
- (e) You will join the investigation of the case as and when required and will cooperate in the investigation;
- (f) You will disclose all the facts truthfully without concealing any part relevant for the purpose of investigation to reach the true and accurate conclusion of the case;
- (g) You will produce all relevant documents/material required for the purpose of investigation;
- (h) You will render your full cooperation/assistance in apprehension of the accomplice;
- (i) You will not allow in any manner destruction of any evidence relevant for the purpose of investigation/trial of the case;

Failure to attend/comply with the terms of this Notice can render you liable for arrest under S.

35(6) of the Bharatiya Nagarik Suraksha Sanhita, 2023.

Name and Designation of the Officer In charge (Seal)

Annexure-F-1

PROFORMA AND REQUISITION FOR ARREST, FROM ACP FOR OFFENCES BELOW 3 YEARS REQUISITION BY IO TO THE ASSISTANT COMMISSIONER OF POLICE U/S 35 (7) BNSS

To the ACP,
Sub Division

Whereas during my investigation, a primacy case is established against name _____ age _____ Occ _____ R/O _____ for offences under section _____ of BNSS, which is punishable for imprisonment of less than 3 years. That the detention of the above mentioned person is required for further investigation into the case, that the person mentioned above is infirm _____ (description of infirmity) / (above sixty years of age) and permission is sought from your good self as per provisions under section 35 (7) of B NSS. Permission may kindly be granted to arrest name _____ age _____ Occ _____ R/O _____ for further investigation of the case.

Signature / seal of
IO/SHO

**PROFORMA BY ASSISTANT COMMISSIONER OF POLICE TO IO U/S
35 (7) BNSS
PROFORMA**

To,
The SHO/IO

Sub: - Grant of permission to Arrest _____ for the offence
u/s _____ in Cr. No _____ of _____ PS
_____.

Reg.

Ref: - Letter Dated

In response to the reference cited above, on verification of the details
available permission is hereby accorded in compliance with section 35 (7)
of BNSS to arrest _____ (Name of the Accused)

Communication of details of Arrest or further action should be sent
to this office.

Assistant Commissioner of Police,
Signature/Seal

ANNEXURE- G

S.No	FIR/DD No. with Date &Time	Name and address of person arrested/Detained	Name and rank of officer making arrest/detained	Date & time of arrest	Place of arrest	Name , address and telephone No. to whom information given	Whether inspection memo prepared or not	Whether dossier search slip prepared	Whether given address is found correct or not	Name & rank of address verifying officer

ANNEXURE- H

(PROFORMA OF INFORMATION OF ARRESTED PERSONS MAINTAINED BY DESIGNATED POLICE OFFICER) (U/SEC. 37 OF BNSS)

Photograph

Name _____ S/o/. _____

-Age _____, Occ: _____ r/o. _____
N/o. _____ Phone No. _____ Blood Group. _____
_____ Caste _____ Community _____ Aadhar No. _____

-Passport No. _____ Driving Licence No. _____ PAN: _____

- Physical Description of the accused :
 - Height _____, Weight : _____ ; Complexion : _____;
 - Built : _____; Special identification Marks: _____
 - Identification marks of the accused: _____
 - Date & time of arrest : ____/ ____/ ____ ; _____ AM/PM
 - Place of arrest: _____
 - Name & details including email id, contact number of the person to whom arrest intimation is given: _____
 - Finger print impressions of arrested person (Enclose Sheet on which FP obtained :
 - Crime number : _____ PS : _____ Section of Law _____
- Name of the officer effected arrest: _____

- Name of the Investigating officer: _____
- M.O of arrested person (offence): _____

- Previous Criminal antecedents with case numbers if any.

- Nature of offence in which arrest is effected (snatching/ assault/theft/ etc)
: _____

Signature of Designated Police Officer

Annexure-I

**(PROFORMA OF INFORMATION OF ARRESTED PERSON DISPLAYED BY
DESIGNATED POLICE OFFICERS)**

SL. No	Date of arrest	Full name of arrested persons	Father's name	Age	Gender	Address	FIR No. and U/s	Name of the PS	District./Unit

CIRCULAR NO. 42/2003

A Committee consisting of Joint CsP Crime, Traffic, Southern-Range and Addl Crime, Delhi was constituted to review the non PPR registers being maintained in various Police Stations of Delhi Police. The Committee after deliberation has approved the following 19 non-PPR registers for use in the Police Stations:-

1. PCR Call/DD entry register.
2. Arrested persons register.
3. Missing persons register.
4. MLC/PM register.
5. Crime register of SHO and I.Os
6. Bail register (in alphabetical order of the accused persons).
7. Surety register (in alphabetical order of the accused persons).
8. Cause list register.
9. Dismissed police personnel register.
10. Complaint register (with separate parts for timed/PMO reference, PO Box NO.171, VIP reference and General reference.
11. Pairvi of heinous cases.
12. Ruffian register (it will be maintained in the following four parts).
 - Part-I ruffians of the area.
 - Part-II Criminals/Ruffians of other area operating/visiting the area.
 - Part-III Bogus Surety.
 - Part-IV (a) Novices/Budding criminals.
 - (b) Problem Creators who speak against police or take part in such activities.
13. Servant verification register.
14. Demolition register.
15. Public meeting register.
16. Tenant Verification register.
17. Kalandra register.
18. Case file/challan movement register.
19. Defect Register.

The recommended/approved format of the above mentioned 19 non- PPR Registers are enclosed.

Henceforth, the above non-PPR Registers shall be maintained in all the Police Stations of Delhi Police.

Sd-/
(V.RENGANATHAN)
for Commissioner of Police:
Delhi.

No. 31255-335/C&T(AC-I)/PHQ dated 16.07.2003.

